



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

HB 2970: fraudulent schemes; artifices; jurisdiction

CARTER N FLOOR AMENDMENT

1. Specifies that in a prosecution for fraudulent schemes and artifices, the state is only required to establish that one of the acts which constitute the violation occurred within Arizona or one of its subdivisions.

ADDITIONAL COW
CARTER N FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2970
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-2310, Arizona Revised Statutes, is amended to
3 read:

4 13-2310. Fraudulent schemes and artifices; classification;
5 definition

6 A. ~~Any~~ A person who, pursuant to a scheme or artifice to defraud,
7 knowingly obtains any benefit by means of false or fraudulent pretenses,
8 representations, promises or material omissions is guilty of a class 2
9 felony.

10 B. Reliance on the part of any person shall not be a necessary
11 element of the offense described in subsection A of this section.

12 C. A person who is convicted of a violation of this section that
13 involved a benefit with a value of ~~one hundred thousand dollars~~ \$100,000
14 or more or the manufacture, sale or marketing of opioids is not eligible
15 for suspension of sentence, probation, pardon or release from confinement
16 on any basis except pursuant to section 31-233, subsection A or B until
17 the sentence imposed by the court has been served, the person is eligible
18 for release pursuant to section 41-1604.07 or the sentence is commuted.

19 D. This state shall apply the aggregation prescribed by section
20 13-1801, subsection B to violations of this section in determining the
21 applicable punishment.

22 E. IN A PROSECUTION FOR A VIOLATION OF THIS SECTION, [THIS STATE IS
23 ONLY REQUIRED TO ESTABLISH THAT ONE OF THE ACTS THAT CONSTITUTES A
24 VIOLATION OF THIS SECTION OCCURRED IN THIS STATE OR WITHIN A SINGLE CITY,
25 TOWN, COUNTY OR LOCAL JURISDICTION OF THIS STATE.] THIS STATE IS NOT
26 REQUIRED TO ESTABLISH THAT ALL OF THE ACTS THAT CONSTITUTE THE VIOLATION
27 OF THIS SECTION OCCURRED IN THIS STATE OR WITHIN A SINGLE CITY, TOWN,

1 COUNTY OR LOCAL JURISDICTION OF THIS STATE. IT IS NOT A DEFENSE TO A
2 PROSECUTION FOR A VIOLATION OF THIS SECTION THAT NOT ALL OF THE ACTS THAT
3 CONSTITUTE THE VIOLATION OF THIS SECTION OCCURRED IN THIS STATE OR WITHIN
4 A SINGLE CITY, TOWN, COUNTY OR LOCAL JURISDICTION OF THIS STATE.

5 ~~E.~~ F. For the purposes of this section, "scheme or artifice to
6 defraud" includes a scheme or artifice to deprive a person of the
7 intangible right of honest services.

8 Enroll and engross to conform

9 Amend title to conform

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